

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV00678

GRADECON CONSTRUCTION, INC. v. CAPURRO

MOTION TO BE RELIEVED AS COUNSEL

The unopposed motion to be relieved is granted. If there is no opposition to the tentative, the Court will sign the proposed order submitted by counsel. Once the order is signed, counsel is directed to serve copies of the signed order on Weston Capurro, and separately upon Kipp Webb, and Francesca Webb, in their individual and trustee capacities.

No. 23CV02138

CALDERAS v. SEASCAPE RESORT LTD.

(UNOPPOSED) MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT

The motion is granted.

The Court finds that the settlement falls within a range of reasonableness and is presumptively valid; appears to be a product of serious, informed and non-collusive negotiations; and has no obvious deficiencies. The Court grants preliminary approval of the settlement; conditionally certifies the class; and approves the class notice as to form and content provided the Notice is issued in both English and Spanish languages.

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

Counsel should appear to set a final hearing on the question of whether the proposed class action settlement, class counsel's fees and expenses, the class representative's enhancement award, and the administrator's fees and costs should be finally approved as fair, reasonable and adequate as to the members of the settlement class, and to correct the language in paragraph 11 of the proposed order.

No. 25CV00973

COSTA v. GENERAL MOTORS, LLC

PLAINTIFF'S MOTION TO STAY PROCEEDINGS

The motion for a stay is denied.

I. BACKGROUND AND MOTION

Plaintiff filed a complaint against General Motors, LLC ("GM") relating to his purchase of a vehicle. Plaintiff maintains that he purchased the Chevy Colorado at issue on May 10 2017, and filed the complaint on March 27, 2025. GM filed a series of demurrers in response to the complaint, the first amended complaint and the second amended complaint. The Court sustained without leave to amend the first, second, and third causes of action in the first amended complaint (Song Beverly express warranty claims). It permitted leave to amend for the implied warranty claim, and thereafter on February 2, 2026, plaintiff filed his second amended complaint ("SAC") with two causes of action: implied warranty and fraudulent concealment. GM filed a demurrer to the SAC, attacking the implied warranty claim as barred by the statute of limitations. This Court agreed, finding that the four-year statute expired nearly four years before plaintiff filed his complaint. After this last demurrer, there remains one cause of action: fraudulent inducement – concealment.

There is a pending motion for summary judgment, filed by GM, to be heard on September 15, 2026. Trial call is set for October 8, 2026.

Plaintiff seeks a stay of these proceedings, pending the Second District Court of Appeal's resolution of *Price v. General Motors* (B353231), "pursuant to the Court's 'inherent power to stay proceedings in the interest of justice and to promote judicial efficiency' [Citation.]" (Mtn. at p. 3.) Plaintiff asserts the *Price* appeal will solve a disputed area of the new law: "whether a manufacturer's post-filing election into the Song-Beverly Act's new procedural regime can retroactively time-bar a complaint that was already on file when the new statutes of repose and limitations took effect." (Decl. of Lister at ¶ 9.)

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

GM opposes, arguing that the motion is moot since the only active cause action remaining is fraudulent inducement-concealment, which is not affected by any decision in *Price*; that the motion does not comply with the California Rules of Court, rule 3.1306; and that plaintiff's motion fails to meet the burden of establishing that the balance of equities favors a stay. GM provides a declaration from its counsel that states that plaintiff's law firm initiated 958 Song-Beverly actions between January 1, 2025 and May 15, 2026. He estimates that approximately 203 cases implicated either the statute of repose, statute of limitations, or both under the new time limits of Code of Civil Procedure section 871.21. (Decl. of Hightower at ¶¶ 3, 4.) "Since January 1, 2025, Defendant GM has devoted significant time, effort, and resources to exercise every available tool to meet the statutory timelines of the new Song-Beverly amendments in the matters SLP has initiated. A stay of those proceedings would prejudice GM." (Decl. of Hightower at ¶ 10.)

II. LEGAL STANDARDS

Plaintiff moves for a stay pending a decision in the Second District Court of Appeals involving a different case but related to this Court's interpretation of the new statute of limitations and repose which now applies in Song-Beverly cases. The Court does not find that plaintiff has made a sufficient showing that staying this action would be in the interests of justice or promote judicial efficiency. "[T]he suppliant for a stay must make out a clear case of hardship or inequity in being required to go forward, if there is even a fair possibility that the stay for which he prays will work damage to some one else. Only in rare circumstances will a litigant in one cause be compelled to stand aside while a litigant in another settles the rule of law that will define the rights of both." (*Landis v. N. Am. Co.* (1936) 299 U.S. 248, 255.) This Court made its rulings on GM's demurrers and does not find that staying this action pending the eventual – but potentially long-delayed – decision in the *Price* case would promote judicial efficiency.

No. 24CV03485

BOSWELL-JEUNG v. FCA, US, LLC

**DEFENDANTS' MOTION FOR TERMINATING AND/OR EVIDENTIARY
SANCTIONS AND MONETARY SANCTIONS**

The motion for terminating and evidentiary sanctions is denied. The motion for monetary sanctions is granted.

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

On April 14, 2026, this Court adopted its tentative ruling, granting defendants' motion to compel plaintiff's deposition. The parties were ordered to meet and confer and set a date for plaintiff's deposition, which was to occur within 30 days from April 14, 2026.

Defendants bring this motion for terminating sanctions, or in the alternative, evidentiary sanctions prohibiting plaintiff from testifying at trial, as well as monetary sanctions against plaintiff and her counsel in the amount of \$2,660.00. The motion references a declaration from defendants' attorney Felicia Borrero, but that declaration does not appear to have been filed with the Court. Defendants assert in their memorandum of points and authorities that after the Court's order granting the motion to compel, the parties agreed to a deposition date of May 7, 2026. Plaintiff then objected; the parties agreed to a new deposition date of July 3, 2026. Plaintiff's counsel served an objection but stated plaintiff would be produced for deposition on that date; plaintiff, however, did not appear on July 3, 2026, and a certificate of nonappearance was taken.

In opposition, plaintiff does not dispute that she failed to appear on January 13, March 20, May 7, and July 3, 2026 for her deposition. No reason is provided for her failure to appear. Plaintiff's counsel also acknowledges that their office failed to respond to two requests for available dates that defense counsel sent in July and August. Plaintiff asserts she has offered deposition dates of August 14, 2026, August 17, 2026, and August 18, 2026 for her deposition. (Decl. of Rucker at ¶ 8.)

Given that plaintiff has failed to comply with only one prior order, the Court is not inclined to grant terminating and/or evidentiary sanctions at this time. Disobeying a court's prior discovery order is a misuse of discovery for which sanctions may be imposed. (Code of Civ. Proc. § 2023.010, subd. (g).) "[A] more severe sanction is disfavored if a lesser sanction is available. [Citation.]" (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 63.) "Before imposing a 'terminating' sanction, courts should usually grant lesser sanctions" (Weil & Brown *Civ. Proc. Before Trial* (TRG 2025) §8:2235.) "The discovery statutes thus 'evinced an incremental approach to discovery sanctions, *starting* with monetary sanctions and *ending* with the ultimate sanction of termination.' [Citation.]" (*Lopez v. Watchtower Bible Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.)

With these parameters in mind, the Court will award monetary sanctions against plaintiff and her counsel in the amount of \$1,330.00, to be paid within 20 days from the date of this hearing. The Court is awarding half of the amount sought since FCA failed to provide any evidence in support of its motion, forcing the Court to resort to plaintiff's own evidence. The Court has not previously levied monetary sanctions against plaintiff or her counsel for failure to comply with a discovery order. The Court orders plaintiff's deposition to take place within 14 days from the date of this hearing. If plaintiff fails to appear, the Court will strongly consider evidentiary and/or terminating sanctions upon a noticed motion.

LAW AND MOTION TENTATIVE RULINGS
DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

No. 26CV00483

FEATHERS v. DLA PIPER LLP, et al.

DEFENDANTS' DEMURRER TO COMPLAINT

The demurrer is sustained without leave to amend. Plaintiff's complaint is time-barred and there is no reasonable possibility that the defects can be cured by amendment. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.)

Self-represented plaintiff Mark Feathers filed his first amended complaint ("FAC") on February 17, 2026, alleging a single cause of action for professional negligence against defendants DLA Piper LLP and Nicolas Morgan, Esq. Plaintiff claims he hired defendants in 2011 to advise and defend him in a Securities and Exchange Commission ("SEC") investigation, and later 2012 enforcement action, but they failed to properly assess and respond so he could avoid the ex parte TRO that froze his assets. He alleges defendants failed to use the six-month period between December 2011 and June 2012 to assess and avoid consequences of a TRO, and breached their duty by withdrawing from his representation when the TRO was issued. (FAC ¶¶ 15-34, 37.)

Defendants argue the FAC is time-barred by statute. (Code Civ. Proc., § 340.6 ["An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first."].) Defendants contend plaintiff's claim is barred by both the one-year and four-year limitations periods since their allegedly negligent conduct occurred on or before June 27, 2012, and plaintiff did not file until February 2026. They also argue he is not entitled to tolling of those periods.

Plaintiff contends he lacked access to records, funding and counsel at the time of the TRO which prevented his discovery of the wrongdoing, and that those allegations preclude sustaining a demurrer.

Defendants object to plaintiff's multiple filings (opposition and supplemental) but since they were filed months before the hearing, providing defendants with sufficient time to respond, the Court will consider all pleadings filed in this matter.

I. LEGAL STANDARDS

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

“A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. In order for the bar...to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.)

II. DISCUSSION

The Court agrees that plaintiff’s claim for professional negligence is time-barred. “[T]he four-year period is indeed an *occurrence* period which will run whether or not the plaintiff has discovered the malpractice.” (*Radovich v. Locke-Paddon* (1995) 35 Cal.App.4th 946, 970 [emphasis in original]; Code Civ. Proc., § 340.6, subd. (a).)

“To protect clients, the Legislature codified the *Neel/Budd* delayed discovery rule, albeit with a one-year limit from the time of actual or imputed discovery. To protect attorneys, it adopted a firm four-year outside limit on liability...Committee reports indicate this four-year limit was intended to counteract the otherwise “open-ended” liability to which lawyers were subject under the delayed discovery rule.” (*Escamilla v. Vannucci* (2025) 17 Cal.5th 571, 582–583 [cit. omitted].)

In both the FAC and plaintiff’s opposition, he concedes his claim is based on the manner and timing of defendants’ 2012 withdrawal. (Supp. Resp. at p. 3; FAC ¶¶ 24, 28, 29, 31-33, 36; Def. RJN 1, 2.) Plaintiff therefore had until June 2016 to bring his claim, but did not.

Plaintiff’s claim also appears time-barred under the shorter one-year period. Plaintiff’s allegations -- that defendants failed to plan and prepare for the enforcement action and a possible asset freeze -- demonstrate that he discovered the wrongdoing he alleges in this action no later than June 27, 2012, or at least had a suspicion of wrongdoing which creates a duty to discover the facts. (FAC ¶¶ 24, 28, 36, 37; *Peregrine Funding Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 685.)

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

When either of the following tests is met, the limitations period begins to run: (1) a subjective test requiring actual suspicion that the injury was caused by the wrongdoing, or (2) an objective test requiring a showing that a reasonable person would have suspected the harm was caused by the wrongdoing. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) At the latest, it appears plaintiff discovered the alleged wrongdoing by defendants when in 2023 he sought to join defendant Morgan to his civil case against the SEC based on Morgan's "failure to provide effective counsel." (Defs. RJN 17.) Therefore, based on this concession, plaintiff's one-year limitations period would have run in 2024.

Further, plaintiff's burden is to establish tolling of the one-year limitations period, and he has failed to do so. First, he admits his actual injury occurred due to the TRO and asset freeze in 2012. (FAC ¶ 38; Code Civ. Proc., § 340.6, subd. (a)(1).) Second, he cannot establish that the offending attorney continued representation since he admits defendants withdrew in June 2012. (FAC ¶¶ 31, 36; Code Civ. Proc., § 340.6, subd. (a)(2).) Finally, plaintiff was not incarcerated related to the SEC criminal action until 2018, so that tolling provision will not apply. (Defs. RJN 14; Code Civ. Proc., § 340.6, subd. (a)(4).)

The Court finds plaintiff's claim is time-barred and that no amendment can cure such defect. The FAC is dismissed with prejudice.

III. REQUESTS FOR JUDICIAL NOTICE AND OBJECTIONS TO EVIDENCE

Pursuant to Evidence Code section 452, subsections (c) and (d), the Court grants requests for judicial notice of the following:

Defendants' request:

- Exhibits 1 through 10, filed documents in *Securities and Exchange Commission v. Small Business Capital Corp., et al.* (Case No. 5:12-cv-03237-EJD)
- Exhibits 11 through 14, filed documents in *United States v. Mark Feathers* (Case No. 5:14-cr-00531-LHK)
- Exhibit 15, Federal Bureau of Prisons Inmate Locator for Mark Feathers (Register No. 20055-111);
- Exhibits 16 through 19, filed documents in *Mark Feathers v. United States Securities and Exchange Commission* (Case No. 3:22-cv-05756-JD).

Plaintiff's request:

- Exhibit 1, filed document in *Feathers v. Commissioner* (Case No. 25-4936 (9th Cir.))

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 18, 2026 TIME: 8:30 A.M.

- Exhibit 2 and 3, filed documents in *United States v. Mark Feathers* (Case No. 5:14-cr-00531-LHK)
- Exhibit 4, U.S. Probation Office correspondence, July 25, 2022
- Exhibit 5, U.S. Department of the Treasury correspondence, November 19, 2025
- Exhibit 6, Opinion filed in *Feathers v. Commissioner*, T.C. Memo 2024-88 (U.S. Tax Court September 23, 2024)
- Exhibit A, filed document in *Mark Feathers v. Commissioner* (U.S. Tax Court, September 13, 2021)

Plaintiff's request for judicial notice of the following documents is denied as they are incomplete:

- Exhibit B, a single page of Exhibit 6, above.
- Exhibit C, filed document in *Mark Feathers v. U.S. Securities and Exchange Comm.* (Case No. 5:23-cv-05610-SVK)
- Exhibit D, filed document in *SEC v. Small Business Capital Corp.* (Case No. 5:12-cv-03237-EJD)

The Court declines to rule on defendants' objections to plaintiff's declaration since it is immaterial to the Court's analysis on demurrer (limited to the FAC and RJN only).